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Case Number: 24NNCV00574 Hearing Date: July 10, 2026 Dept: A

MOTION TO QUASH DEPOSITION SUBPOENAS

Los
Angeles Superior Court Case # 24NNCV00574

MP: Defendants Shanghailander Palace Arcadia, Yulian Kong, and
Charles Lu

RP: No opposition received

NOTICE:

The Court
is not requesting oral argument on this matter. The Court is guided by
California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear
is requested. Unless the Court directs argument in the Tentative Ruling,
no argument is required and any party seeking argument should notify all other
parties and the court by 4:00 p.m. on the court day before the hearing of the
party’s intention to appear and argue. The tentative ruling will become
the ruling of the court if no argument is received.

Notice
may be given either by email at or by telephone at (818)
260-8412.

ALLEGATIONS:

Haifeng

Xu ("Plaintiff") was a waiter at a restaurant operated by Defendant Shanghailander Palace Arcadia ("SPA"). Plaintiff alleges that he received no overtime wages nor any rest or lunch breaks. After the restaurant added "shark fin soup" to their menu, Plaintiff made comments to the head chef regarding the illegality of shark fin soup. Thereafter, the chef and manager David began harassing him and calling him derogatory homosexual slurs, reduced his weekly hours, excluded him from a holiday party, pressured him to lie to customers about paying in cash (as opposed to credit cards), and ultimately terminated him on the false premise that a female customer accused him of speaking to her with sexual undertones. After his termination, Plaintiff claims that SPA failed to timely pay Plaintiff the final paycheck.

The complaint, filed March 27, 2024, alleges: (1) Unlawful Sexual Harassment; (2) Hostile Work Environment; (3) Retaliation; (4) Wrongful Termination in Violation of Public Policy; (5) Failure to Pay Wages Timely (Waiting Time Violations); (6) Non-Payment of Overtime Time and/or Double Time Wages (Labor Code § 510, Wage Order 5-2001); (7) Failure to Provide Rest Breaks and/or Meal Periods (Labor Code § 266.7); and (8) Unfair Business Practices (Bus. & Profs. Code § 17200 et seq.).

MOTION ON CALENDAR:

On March 12, 2026, Defendants filed a Motion to Quash Plaintiff's Deposition Subpoenas for Production of Business Records to Nonparties Bank of America and JPMorgan Chase Bank (Reservation No. 961863533197). The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

C.C.P. § 1987.1 grants the trial court authority to quash a subpoena when necessary. C.C.P. § 1987.1(a) states, "If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

ANALYSIS:

A.
Discussion of Merits

By way of background the Court notes that Defendants previously filed a motion on February 24, 2026 (Reservation No. 438333917234) based on deposition subpoenas issued on February 9, 2026. The Court denied this request as moot on April 24, 2026 because amended deposition subpoenas were issued on February 27, 2026 and March 3, 2026 (the deposition subpoenas at issue in this motion).

Defendants move to quash Plaintiff's deposition subpoenas for production of business records issued to nonparties Bank of America and JPMorgan Chase Bank. Both deposition subpoenas request:

Please produce true and correct copies of monthly periodic bank statements for any and all deposit accounts (including checking, savings, money market, and similar accounts) for which any of the entities and individuals listed below is (i) an account owner, (ii) a joint account holder, (iii) an authorized signer, or (iv) otherwise identified by the Bank as having authority to transact on the account: Shanghailander Palace (Arcadia) for the period December 1, 2022 through July 30, 2023.

For each responsive account, please include: (a) the requested statements (and, if maintained with the statement package, any check images and deposit items), and (b) account opening/closure documentation or account profile information sufficient to identify account title, ownership/signatory information, and the account opening and closing dates, to the extent maintained.

(Singh Decl., Ex. 1 [Feb. 27, 2026 BOFA Subpoena]; Ex. 2 [Mar. 3, 2026 Chase Subpoena].) The deposition subpoenas provide search instructions and how production may be made (electronically, via link, or email). (Id.)

Defendants objected to the subpoenas arguing they were
not served on the consumer, Plaintiff is not entitled to discover Defendants' profits or financial condition pursuant to Civil Code, § 3295(c), the information is protected by the right of privacy, and the requests are overbroad, not reasonably calculated to lead to the discovery of admissible evidence, and are intended to harass and annoy Defendants.

Civil Code, § 3295 states in relevant part:

(a)
The court may, for good cause, grant any defendant a protective order requiring the plaintiff to produce evidence of a prima facie case of liability for damages pursuant to Section 3294, prior to the introduction of evidence of:

(1)
The profits the defendant has gained by virtue of the wrongful course of

conduct
of the nature and type shown by the evidence.

(2)
The financial condition of the defendant.

…

(c)
No pretrial discovery by the plaintiff shall be permitted with respect to the evidence referred to in paragraphs (1) and (2) of subdivision (a) unless the court enters an order permitting such discovery pursuant to this subdivision. However, the plaintiff may subpoena documents or witnesses to be available at the trial for the purpose of establishing the profits or financial condition referred to in subdivision (a), and the defendant may be required to identify documents in the defendant's possession which are relevant and admissible for that purpose and the witnesses employed by or related to the defendant who would be most competent to testify to those facts. Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on

the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Such order shall not be considered to be a determination on the merits of the claim or any defense thereto and shall not be given in evidence or referred to at the trial.

(Civ. Code,
§ 3295(a), (c).)

Defendants
argue that while Plaintiff seeks punitive damages in the complaint, Plaintiff has not complied with section 3295 to request pretrial discovery into Defendants' finances. Based on the
Court's review of the motions filed in this action, Plaintiff has not filed a motion to conduct pretrial discovery regarding Defendants' finances pursuant to section 3295. This action involves an
employment-based action where Defendants' finances, profits and losses, etc. are not the core issue of the action.

As the motion is unopposed and there is substantive merit to the motion, the motion to quash is granted.

B.
Sanctions

Defendants seek $3,060 in
sanctions against Plaintiff and his counsel of record (= [4 hours on the motion + 2 anticipated hours to review the opposition, draft a reply, and attend the hearing, at $500/hour] + $60 in filing fees).
(Singh Decl., ¶5.)

The Court declines to award sanction.

RULING:

In the
event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the

following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants
Shanghailander Palace Arcadia, Yulian Kong, and Charles Lu's Motion to Quash Deposition Subpoenas for Production of Business Records came on regularly for hearing on July 10, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The Motion TO QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS IS GRANTED.

SANCTIONS
ARE DENIED.

DEFENDANT SHANGHAILANDER TO PROVIDE NOTICE.

IT IS SO ORDERED.